

employer's employees." (*Mejia v. Roussos Construction Inc.* (2022) 76 Cal.App.5th 811, 820.) There are no allegations indicating such. Instead, there is a single conclusory allegation that "Defendants were joint employers for all purposes of Plaintiff and all members of the Classes." (§ 14.) This allegation contains no facts to support this contention.

PAGA

Defendant argues that the proposed amended complaint appears to continue the PAGA cause of action based on the fact that the caption and the footer contain reference to PAGA.

"As an initial matter, the allegations in the body of the complaint, not the caption, constitute the cause of actions against the defendant." (*Davaloo v. State Farm Ins. Co.* (2005) 135 Cal.App.4th 409, 418 *citing Falahati v. Kondo* (2005) 127 Cal.App.4th 823, 829) The California Supreme Court long ago held that the "subject matter of an action and the issues involved are determinable from the facts pleaded, rather than from the title or prayer for relief." (*Coffelt v. Coffelt* (1964) 229 Cal.App.2d 659, 665 *quoting Standard Brands of California v. Bryce* (1934) 1 Cal.2d 718, 721.)

It is clear the PAGA cause of action is removed from the proposed amended complaint. Plaintiff's counsel's reply makes clear that the "substantive PAGA cause of action was removed." (Reply at 6:13.)

Summary and Conclusion

Over two years into this matter and Plaintiff's counsel is seeking leave to utterly change the focus and scope of this litigation while having done just about nothing to move it forward to this point. The Court cannot allow this delayed amendment that appears to have minimal change of protecting the putative class members given the issues raised regarding the adequacy of representation.

The Court is mindful, however, that the California Supreme Court has made clear that if a named plaintiff can no longer suitably represent the class, the Court should afford plaintiffs the opportunity to amend the complaint to add new individual plaintiff(s). (*La Sala v. American Sav. & Loan Assn.* (1971) 5 Cal.3d 864, 872.)

Accordingly, the Court **denies Plaintiff's motion without prejudice.**

Plaintiff's counsel will have 90 days from notice of entry of the order on this motion to locate a new representative plaintiff that was employed by Defendant RH Oak during the relevant time to replace Mr. Rubio and seek leave to amend to add that person.

Evidentiary Objections

Objection 1: Overruled

Objection 2: Overruled

Objection 3: Overruled

Objection 4: Overruled

Objection 5: Overruled

16. 9:00 AM CASE NUMBER: C24-02020
CASE NAME: BRANDON VARISE VS. MARZBAN RAD
*HEARING ON MOTION IN RE: SET ASIDE ENTRY OF DEFAULT
FILED BY: RAD, MARZBAN

TENTATIVE RULING:

Defendant Marzban Rad filed a Notice of Appeal. This case is stayed pending appeal. This hearing is off calendar.

17. 9:00 AM CASE NUMBER: C25-00276
CASE NAME: CHRISTOPHER SEARS, PHD VS. VIVIANE SIINO, PHD
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: SIINO, VIVIANE, PHD

TENTATIVE RULING:

Defendant Vivanne Siino, Ph.D's demurrer to the first amended complaint is **sustained with leave to amend**. Plaintiff has 20 days from notice of entry of order on this ruling to file and serve a second amended complaint.

Plaintiff Christopher Sears, Ph.D. is suing for libel based upon statements that Plaintiff made to third parties, including family members and Plaintiff's professional contacts. Previously the Court sustained Defendant's demurrer to this cause of action with leave to amend. Defendant now demurs to the first amended complaint, arguing that it does not state sufficient facts for a valid cause of action.

Allegations

Here Plaintiff is suing for libel and alleges that Defendant made the following defamatory statements regarding financial abuse and child abuse.

The financial abuse allegations are that Defendant had to open a secret bank account to hide money from Plaintiff and that when Plaintiff discovered the account, he hit Defendant several times. (FAC ¶¶8-9.) In discovery in a related proceeding, this account was identified as a Bank of America checking account x2406. (FAC ¶8.)

The child abuse allegations are that Plaintiff hit one of the parties' children twice on the head, grabbed her by the shoulders and lifted her off the chair and then shoved her onto a chair, pushing down against her shoulders. (FAC ¶10.)

Plaintiff alleges that, on information and belief, these statements were published to third parties, including Defendant's brothers Marc, Frank, Dan and other family members, and to one or more non-family recipients. (FAC ¶¶11-12.)

As to falsity, Plaintiff alleges that the financial statements are false because there is no Bank of America checking account x2406 and that the family court found there was no coercive control and rejected the "secret account" testimony for lack of specifics. (FAC ¶¶13, 14.) As to the child abuse statements, Plaintiff alleges that the family court made findings regarding Plaintiff's conduct, including